

The Usufruct License (UFL)

Version 3.3 • Operational Scope: No-Third-Party-Hosting

LicenseRef-UFL-3.3-H • repo tag UFL-H-1a • canonical text, whitepaper, and FAQ:
<https://github.com/estejosh/UFL-Usufruct-License>

Copyright (c) [YEAR] [COPYRIGHT HOLDER]

Reference copy. This PDF is read-only. A Licensor adopts this text by filling in only the year, copyright holder, and project name, in its own LICENSE file (Section 2C). The SHA-256 below identifies this exact text.

1. Grant of Use

Subject to the terms below and the Operational Scope declared above, the Licensor grants anyone the free, perpetual, worldwide right to use the Software — in source or compiled form, at any scale — without payment, except as Section 1A limits that grant. This includes running the Software, deploying it, integrating with it through its published interfaces, and operating a product or service built on top of it, as scoped by Section 1A. A use that Section 1A withholds from the free grant is licensed under Section 8, on the terms of this license.

1A. Operational Scope

The Operational Scope declared above states the only limit, if any, on Section 1's free grant. Exactly one scope applies to this Software:

No-Third-Party-Hosting — Section 1's free grant excludes providing the Software to third parties as a hosted or managed service that gives those third parties access to substantially all of the Software's features or functionality. That excluded use is Paid Use under Section 8. All other uses described in Section 1 are unconditional.

1B. Definitions

"Licensor" means the copyright holder named above. "Licensee" means anyone who uses the Software; when an individual uses it for an organization, the organization is the Licensee.

"Production Use" means any use of the Software that is not Non-Production Use.

"Non-Production Use" means evaluating, developing, testing, or demonstrating the Software. It does not include using the Software on real work or live data for business purposes, or delivering its output to a court, regulator, client, or customer as finished work.

"Seat" means each individual — employee, contractor, or other personnel of the Licensee — whose role includes using the Software or relying on its output in the ordinary course of that role, whether or not that individual operates the Software. Individuals whose contact with the Software or its output is incidental or one-time are not Seats. Where a count of Seats matters under this license, it is the highest number of Seats at any time during the period being counted.

1C. Releases

A "Release" is a version of the Software that the Licensor publishes under its own version number, tag, or date. This license applies to each Release separately, and where it refers to the Software, it means the Release the Licensee uses.

With each Release, the Licensor states which version of this license, and which Operational Scope, governs that Release (its "Ruling License"). The statement names both, for example "UFL 3.3, Operational Scope: Noncommercial", and appears where users get the Release: in its release notes, its tag, or its package metadata. The Release includes the full text of its Ruling License. If a Release does not state its Ruling License, the license text included with it governs; if none is included, the license text in the Software's repository at the commit the Release was made from governs.

A Release's Ruling License is fixed when the Release is published. For that Release, the Licensor grants every Licensee the rights its Ruling License gives, perpetually and irrevocably, on that Ruling License's own terms. Nothing the Licensor later does, including publishing a later Release, changing the license in the Software's repository, or adopting a later version of this license, changes, narrows, or ends those rights.

The Licensor may license a later Release under a later version of this license, under a different Operational Scope, or under other terms. A Licensee who uses that later Release does so under its Ruling License. A Licensee who keeps using an earlier Release keeps the Ruling License that Release states.

2. Reserved Rights

The following rights are reserved to the Licensor and are NOT granted by Section 1. They require a separate written license from the Licensor, except as Section 2A permits:

- (a) Distributing the Software, or any modified version, fork, or substantially similar reimplementation of it, to any third party, in source or compiled form.
- (b) Incorporating the Software's source code into another product or service that is distributed, sold, or otherwise made available to third parties.
- (c) Using the Licensor's name, marks, or claims of compatibility ("[PROJECT NAME]-compatible," "built on [PROJECT NAME]," etc.) in connection with a distributed derivative.

2A. Forks of Decentralized or Network Software

If the Software is designed to run as a node, client, or peer in a decentralized network, blockchain, or similar peer-to-peer protocol, Section 2(a) does not require a separate license for distributing a modified version, fork, or independent reimplementation of it — including to operate a competing network — provided the distributed work:

- (i) prominently and accurately credits [PROJECT NAME] as the origin of the Software or protocol, in its README, whitepaper, or equivalent primary documentation; and
- (ii) keeps the canonical-source notice required by Section 7 intact.

Distributing a fork that removes, obscures, or falsifies this attribution is not permitted under this exception and still requires a separate license under Section 2(a). This section does not affect Sections 2(b) or 2(c): incorporating the Software into another distributed product, and using the Licensor's name or marks to claim compatibility, still require a separate license regardless of attribution.

2B. Reproducing This License Text

The text of this license — this document itself, independent of any particular copy's Operational Scope, copyright holder, or project name — may be freely copied and reproduced by anyone to license their own software, including verbatim reproduction in a project's own LICENSE file. This permission is not limited by Section 2(a) and applies regardless of Operational Scope: licensing your own software under this text is not "distributing the Software" of any other project that also uses it, and requires no separate permission from any Licensor who has used it. This section grants no right to any particular Licensor's Software — only to the legal text of this license itself.

2C. Version Fidelity

The permission granted by Section 2B is a permission to reproduce, not to modify. A copy of this text is adopted as-is. For each Release (Section 1C), a Licensor makes two choices and no others: which version of this license to adopt, and which single Operational Scope in Section 1A applies, stated exactly as that version's canonical text provides for that scope, including the free threshold the Seat-Limited scope calls for and the native token, or none, that the Decentralized scope names. The only blanks a Licensor fills in are the copyright year, the copyright holder, and the project name given near the top of this text. Every other term, including the terms on paid use, acceptance, usage statements, retroactive licenses, and disputes, is set by this text and is the same for every project under this version. No wording in this license, including this section, may be added to, removed, or altered in any copy that is presented, cited, or identified as "the Usufruct License," "UFL," or by any LicenseRef-UFL-* identifier, and no separate document may add to or change its terms (see Section 15). A project that needs different terms is free to write its own license, including one derived from this text under its own name — it is not free to alter this text and continue to call the result UFL.

Anyone may propose a change for a future version at the canonical source named in Section 7. An adopted proposal becomes a new official version, never a retroactive edit: once a version of this license is published, its text is not changed, and a project that wants a later version's provisions adopts that version's text in full.

3. Why "Usufruct"

In civil law, a usufruct is the right to use property belonging to another and enjoy its benefits, without the right to alter its substance or transfer ownership to someone else. This license grants exactly that: full use, no transfer.

4. Contributions

A "Contribution" is any fix, change, or addition to the Software that someone submits to the Licensor, by pull request, patch, message, or any other means, whether or not the

Licensors accept it.

By submitting a Contribution, its author grants the Licensor a perpetual, worldwide, irrevocable, royalty-free, non-exclusive license to use, reproduce, modify, distribute, sublicense, and relicense that Contribution, as part of the Software or any other work, under this license or any other terms. The grant includes every patent right the author holds that the Contribution, or its combination with the Software, would infringe. Nothing is owed to the author for this license, now or later. The author keeps ownership of the Contribution.

Submitting a Contribution is the author's agreement to this Section 4. An author submits only what the author has the right to license: if an employer, client, or anyone else has rights in a Contribution, the author must have that party's authority to grant this license before submitting it.

A Contribution that becomes part of the Software is licensed to everyone under this license, including the reservations in Section 2.

Where the Licensor requires a recorded step before it will consider a Contribution, such as a signed acknowledgement in a pull request, the author will complete it. The step records the author's agreement to this Section 4 and adds no term to it.

5. No Warranty

THE SOFTWARE IS PROVIDED "AS IS", WITHOUT WARRANTY OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO THE WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NONINFRINGEMENT. IN NO EVENT SHALL THE LICENSOR BE LIABLE FOR ANY CLAIM, DAMAGES, OR OTHER LIABILITY ARISING FROM THE SOFTWARE OR THE USE OR OTHER DEALINGS IN THE SOFTWARE.

Neither the Licensor nor this license claims that the Software or its output is accurate, complete, or compliant with any law, regulation, rule, or standard, or that any court or regulator has approved it. Output can be wrong or incomplete, and it does not replace review by a qualified professional.

6. Note on Classification

This is a source-available license, not an OSI-approved open source license. The Open Source Definition requires unrestricted redistribution rights, which Section 2 intentionally withholds regardless of Operational Scope. Some Operational Scopes under Section 1A also withhold uses the Open Source Definition requires to be unrestricted. The source is public; which uses are free depends on the Operational Scope declared above, and Section 8 sets how any other use is licensed.

7. Notice

The canonical-source line at the top of this license text (or an equivalent pointer to <https://github.com/estejosh/UFL-Usufruct-License>) must be kept intact when this license text is copied into another project. This is a notice requirement on the license text itself, not an additional condition on using the Software.

8. Paid Use

A use that the Operational Scope withholds from Section 1's free grant ("Paid Use") is licensed under this license, on all of its terms, when the Licensee pays the Licensor's Published Price for it. The "Published Price" is the price the Licensor publishes for that use at a location identified in the Software's repository or documentation. It may be set per Seat, per device, per year, by tier, or by any other measure, but it is a price only: it cannot add to, remove, or change any term of this license.

Paid Use is licensed for the period the Published Price covers and renews at the Published Price in effect when the next period begins. A change to the Published Price applies only to periods that begin after the change. If the Licensor has not published a price for a withheld use, that use is not available under this license.

9. Acceptance

Using the Software is acceptance of this license. Where the Operational Scope withholds any use, the Software presents, before first use, an affirmative step that names this license's version and must be completed: an on-screen agreement, an interactive prompt, or, for non-interactive use, an explicit setting or flag naming the version. Under any other Operational Scope, the Licensor may build in the same step. Where the Software provides that step, the Licensee will complete it and will not bypass it. The Software may record the license version accepted, the time, and the name of the accepting party, and keeps that record only on the Licensee's own systems.

In accepting this license, the Licensee acknowledges that the Software is protected by copyright from its creation, whether or not that copyright is registered, and that any use the Operational Scope withholds, made without Paid Use or a Retroactive License covering it, is use of a copyrighted work outside this license. Nothing in this license limits the Licensor's rights and remedies under copyright law.

10. Usage Statements

Where the Operational Scope withholds any use, the Licensee will, within 30 days of the Licensor's written request and no more than once in any 12 months, give the Licensor a statement signed by a person authorized to act for the Licensee. The statement gives the period covered; whether the Licensee made any use the Operational Scope withholds during that period and, if so, its extent, measured the way the Published Price measures it (for example, in Seats); and any counts of work processed that the Software keeps. It contains no content of any data the Software processed and no identity of the Licensee's clients or customers. The Software may provide a command that produces the statement from its local records.

This license does not require or permit the Software to send information about the Licensee's use to the Licensor for the purpose of enforcing this license. Compliance is shown by the statement in this section, not by monitoring.

11. Output Marks

The Software may embed technical marks in its output showing that the Software produced it and whether it was produced under Paid Use, free Production Use, or Non-Production Use. A mark may not contain the Licensee's identity or the content of any data the Software processed, and may not change the substance of any output. This section discloses those marks to every Licensee. The Licensee will not remove, alter, or forge them.

12. Retroactive Licenses

Use that the Operational Scope withholds, made without Paid Use covering it, is licensed retroactively once the Licensee pays the following for each period of that use (a "Retroactive License"):

- (a) the Published Price in effect at the start of that period, if the Licensee disclosed the use to the Licenser in writing before the Licenser gave the Licensee written notice of it; or
- (b) three times that Published Price, if it did not;

plus simple interest at 10 percent per year, or the highest rate the law allows if that is lower, from the end of each period until paid. A Retroactive License reaches back no more than three years before the earlier of the Licensee's disclosure or the Licenser's notice.

The Published Price is the price of a license taken up front or disclosed promptly. A Retroactive License covers use the Licenser had to find, and its price reflects that. These amounts are prices for licenses, fixed in advance by this license and the same for every Licensee; they are not damages. Once paid, the use they cover is licensed as Paid Use.

13. Continued Use

The grant in Section 1 is perpetual and is not revoked for nonpayment. A Licensee that owes amounts under Section 8 or Section 12 keeps its rights under Section 1 and may keep using the Software. It remains liable for those amounts, which continue to accrue under Section 12 for any continued use the Operational Scope withholds, until it is brought current, either by paying them or by a written agreement with the Licenser on how and when they will be paid. Once current, the Licensee continues under this license as before. This section does not limit the Licenser's remedies for conduct that Section 2 reserves.

14. Disputes

This license is governed by California law, without regard to its conflict-of-laws rules, unless the Operational Scope states otherwise.

Unless the Operational Scope provides its own dispute process, mediation and arbitration under this section cover a dispute between the Licenser and a Licensee about whether a use is Paid Use, about any amount owed under Section 8, 12, or 13, or about a usage statement under Section 10 (a "Payment Dispute"). They do not cover a Licensee's use under Section 1's free grant that raises none of those questions. Any other dispute arising out of this license or the Software is left to the law and the courts that would

otherwise apply.

A Payment Dispute goes first to mediation. Either party may start mediation by written notice to the other, and the mediation must begin within 30 days of that notice. If the dispute is not resolved within 60 days of the notice, either party may submit it to binding arbitration under the Rules of Arbitration of the International Chamber of Commerce, before a single arbitrator seated in California. The parties may agree in writing to a different schedule.

Mediation and arbitration may be conducted entirely by video conference and electronic submission, and no party is required to attend in person unless the parties agree otherwise. Judgment on an arbitration award may be entered in any court with jurisdiction.

Either party may go directly to court for an injunction to stop conduct that Section 2 reserves or that infringes the Licensor's intellectual property, without first mediating or arbitrating.

In any arbitration or court proceeding under this license, the prevailing party is entitled to its reasonable attorney fees and costs.

15. Entire License

This license is the complete set of terms on which the Software is used. No other document, including any document the Licensor publishes, adds to, removes, or changes these terms. A Published Price sets an amount only. The only other agreements this license recognizes are a written agreement under Section 13 on paying amounts already owed, an author's recorded acknowledgement of Section 4, and a separate license for the rights Section 2 reserves, which this license does not grant.

If any provision of this license is held unenforceable, the remaining provisions stay in effect, and the unenforceable provision is enforced to the greatest extent the law allows.

SPDX identifier: UFL is not on the official SPDX license list. Per SPDX convention for licenses outside that list, use LicenseRef-UFL-3.3-H – not a bare UFL-3.3-H, which would misrepresent it as SPDX-registered.